

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 7/31/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
1	30-2026-01571651 CSCDA Community Improvement Authority vs. Billingley	The Court has read and considered the Defendants' Demurrer (ROA 11), the Plaintiff's Opposition (ROA 29) and the Complaint (ROA 2). The Court OVERRULES the Demurrer. The Court takes Judicial Notice that on 7/2/2026 Kaylei Ruthledge filed an Answer (ROA 31). The Court orders Defendant Sheunna Billingley to file an Answer within 5 court days. The Court sets August 17, 2026, at 8:30 AM in Department C61 for Court Trial. Witnesses are required to testify in person unless the court finds good cause to allow remote testimony. The party seeking remote testimony of a witness must file the request and service notice to all parties and the Court at least 5 days prior to the trial date. Parties should have at least three (3) copies of any documentary evidence they intend to present in the trial-one for themselves, one for the opposing

		party, and one for the Court. If the parties upload any evidence to the evidence portal, or intend to present any video evidence, they must have a device available to present such evidence in the courtroom on the day of trial. The Court Clerk is to provide notice.
2	30-2026-01579731 United Commercial Holdings LLC vs. Manry	The Court has read and considered the Defendant's Demurrer (ROA 7), the Complaint (ROA 2) and the Plaintiff's Opposition (ROA 11). The Court OVERRULES the Demurrer. The Defendant is ordered to file an Answer within 5 business days. Plaintiff is ordered to provide notice of the Court's ruling.
3	30-2026-01581835 Palma vs. Umana	The Court has read and considered the Defendant's Demurrer (ROA 11), Plaintiff's Opposition (ROA 20) and the Complaint (ROA 1). The Court SUSTAINS the Demurrer with leave to amend. The Complaint fails to answer #7, whether the tenancy is subject to the Tenant Protection Act of 2019. Additionally, the Plaintiff checked box 8a that the tenancy was terminated for at-fault just cause, but it is a 60-day notice to terminate and fails to state "just cause" in the notice to terminate. Plaintiff has leave to amend the complaint within 5 business days. The Court Clerk will provide notice.
4	30-2026-01583021 Sunset Ridge Investment LP vs. Martinez	The Court has read and considered the Defendants' Demurrer (ROA 13) and the Complaint (ROA 2). The Court OVERRULES the Demurrer. The Defendants are ordered to file an Answer within 5 business days. The Plaintiff is to provide notice of the Court's ruling.
5	30-2026-01581433 Wilbur vs. Jaimes	The Court has read and considered the Defendant's Demurrer (ROA 8), the Complaint (ROA 1) and Plaintiff's Opposition (ROA 13). The Court OVERRULES the Demurrer. Although the Plaintiff has many superfluous complaints about how the Defendant conducts herself on the property, the Complaint, on its face, states sufficient grounds for an unlawful detainer action based on a 60-day notice to terminate. The Defendant is ordered to file an Answer within 5 business days. The Court sets August 17, 2026, at 8:30 AM in Department C61 for Court Trial. Witnesses are required to testify in person unless the court finds good cause to allow remote testimony. The party seeking remote testimony of a witness must file the request and service notice to all parties and the Court at least 5 days prior to the trial date.

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6	30-2026-01567697 Kelly vs. Solomonian	The Court has read and considered the Defendants' Motion for Order to Stay Proceedings; Notice of Defendants' Motion to Consolidate Cases (ROA 71), Declaration of Patrick Solomonian In Support of Motion to Stay Execution of Judgment (ROA 111). The Court takes Judicial Notice of the existence of 30-2026-01552597-CU-PO-WJC, Notice of Appeal-Limited Civil-Appeals (ROA 82), Notice of Related Case (ROA 103), Notice of Default on Appeal – Appeals (ROA 89), 7/22/2026 Minute Order (ROA 91), 6/23/2026 Minute Order (ROA 43), Amended Notice of Ruling (ROA 47), Defendant's Motion for Reconsideration (ROA 52), Request for Entry of Default (ROA 65), and 7/10/2026 Minute Order (ROA 60). Defendants move to stay this unlawful detainer action based on the pendency of Orange County Superior Court case No. 30-2026-01552597-CU-PO-WJC, in which they allege that Plaintiff wrongfully caused the death of Plaintiff's and Defendants' mother. Defendants contend that, if successful in that action, issues concerning title to the subject property may arise. Defendants also argue that a stay is warranted because Plaintiff failed to file a Notice of Related Case pursuant to California Rules of Court, rule 3.300. The Court is not persuaded. Rule 3.300 imposes an obligation on all parties to notify the Court of related actions; it does not assign that responsibility exclusively to any one party. The failure of either party to timely file a Notice of Related Case does not, by itself, constitute a basis to stay these proceedings. The Court further notes that Defendants filed a Notice of Related Case (ROA 103) on July 23, 2026. Finally, Defendants seek a stay based on the filing of a petition for writ of mandate. The record reflects that on July 22, 2026, the Appellate Division of the Orange County Superior Court issued a notice of default in that proceeding. Defendants have identified no order from the Appellate Division staying the proceedings in this action. The motion is DENIED. Unlawful detainer actions are summary proceedings that are statutorily entitled to precedence over other civil matters and are intended to be resolved expeditiously. (Code Civ. Proc., § 1179a.) Defendants have not demonstrated any legal or factual basis warranting a stay of these proceedings.
8	30-2026-01574029 Wolverton vs. Boyer	The Court has read and considered the Plaintiff's Motion For Order Establishing Admission for Defendants Alan Boyer and Franiaz Mostafavi to Requests for Admission (Set One) and Plaintiff's Motion to Compel

		Defendants' Responses to Special Interrogatories and Request For Production of Documents. IT IS ORDERED that the Plaintiff's Motion For Order Establishing Admission for Defendants Alan Boyer and Franiaz Mostafavi to Requests for Admission (Set One) be and hereby is granted and that the truth of all specified matters, and the genuineness of all specified documents, in the First Set of Requests for Admissions, propounded by Plaintiff and served on Defendants on June 26, 2026, be deemed admitted. The Plaintiff's Motion to Compel Defendants' Responses to Special Interrogatories and Request For Production of Documents is GRANTED. Defendant is hereby ordered to serve full and complete verified responses, without objection to Plaintiff's Request for Production of Documents, within 5 days of service of notice hereto. Defendant is hereby ordered to serve full and complete verified responses, without objection to Special Interrogatories, within 5 days of service of notice hereto. The Court orders the Defendants, Alan Doyer and Farinaz Mostafavi, forthwith to pay sanctions in the amount of \$640 to the Plaintiff. This sum shall be made payable to "Jackson Tidus, A Law Corporation" within 5 business days and shall be delivered to 2030 Main Street, Suite 1500, Irvine, CA 92614. The Plaintiff is ordered to provide notice of this Court's order.
9	30-2026-01569647 Due Tran, Trustee of the MDRLL Trust vs. Bintliff	The Court has read and considered the Defendant's Motion for Temporary Stay of Execution for Writ of Possession Pending Hearing on Verified Petition for Relief from Forfeiture (CCP section 1179) and Plaintiff's Opposition. The Court takes Judicial Notice of the 7/13/2026 Minute Order and the 6/23/2026 Minute Order. This matter was set for a Court Trial on 6/23/2026 in which the Defendant did not appear. After reviewing the evidence presented, the Court found judgment for the Plaintiff. On 7/13/2026 the Court denied the Defendant's Ex Pare Application for Stay of Execution of Judgment. The Court finds that the Defendant failed to meet it's burden under California Code of Civil Procedure section 1179. Defendant's Motion is DENIED. The Court Clerk is to notify the Orange County Sheriff's Department to proceed with the lockout. The Plaintiff is to provide notice of the Court's ruling.
10	30-2026-01570309 Mycorn vs. Velasquez	The Court has read and considered the Defendant's Motion to Dismiss Unlawful Detainer Or In the Alternative, for Relief from Forfeiture and Grace Time to Vacate (ROA 7) and Plaintiff's Opposition (ROA 21). The Court DENIES the Defendant's Motion to Dismiss. A Motion to Dismiss is an improper responsive pleading after being served with a complaint regarding an unlawful detainer. Pursuant to California Code of Civil

		Procedure § 1170(a), the Defendant needs to file a motion to quash service of summons, a motion to strike, a demurrer to the complaint, or an answer. The Defendant is to file a responsive pleading consistent with California Code of Civil Procedure § 1170 (a) within 5 calendar days of receiving notice of the Court's ruling. The Court Clerk is to provide notice of the Court's ruling.
11	30-2026-01585175 Park Newport LP vs. Anderson	The Court has read and considered the Defendant's Motion to Quash Service (ROA 10). The Court takes Judicial Notice of the Answer to the Complaint (ROA 7) and Application to Serve Summons by Posting (ROA 16). Plaintiff has not asserted proper service of the Summons and Complaint, in ROA 16 in the Declaration of Diligence the process server indicates leaving a courtesy copy at the premises on July 22, 2026. The Motion to Quash Service is granted; Plaintiff is ordered to re-serve notice on Uniah Anderson. The Court Clerk is to provide notice of the Court's ruling.
14	30-2026-01542411 Soad Khalil, Trustee vs. Brown	The Court has read and considered the Defendant's Motion to Quash Subpoena and Request for Monetary Sanctions (ROA 139), Plaintiff's Opposition (ROA 127), Declaration of Craig P. Fagan (ROA 133) and Reply to Opposition (ROA 143). In 1988, the 6th District Court of Appeal quoted a previous decision of the 8th District regarding the issue of deposing opposing counsel: "Taking the deposition of opposing counsel not only disrupts the adversarial system and lowers the standard of the profession, but it also adds to the already burdensome time and costs of litigation. It is not hard to imagine additional pretrial delays to resolve work-product and attorney-client objections, as well as delays to resolve collateral issues raised by the attorney's testimony. Finally, the practice of deposing opposing counsel detracts from the quality of client representation. Counsel should be free to devote his or her time and efforts to preparing the client's case without fear of being interrogated by his or her opponent. Moreover, the 'chilling effect' that such practice will have on the truthful communications from the client to the attorney is obvious. [para.] We do not hold that opposing trial counsel is absolutely immune from being deposed. We recognize that circumstances may arise in which the court should order the taking of opposing counsel's deposition. But those circumstances should be limited to where the party seeking to take the deposition has shown that (1) no other means exist to obtain the information than to depose opposing counsel, [citation]; (2) the information sought is relevant and nonprivileged; and (3) the information is crucial to the preparation of the case. (<i>Shelton v. American Motors Corp.</i> (8th Cir. 1986) 805 F.2d 1323, 1327.)" (<i>Spectra-Physics, Inc. v. Superior Court</i> (1988) 198 Cal.App.3d 1487, 1494-1495.) Here, Plaintiff's counsel is seeking to have the Defendant's counsel testify as to an email in which the only people on the email are both counsel for the

	Defendant and Mr. Silverstein, the Plaintiff's previously retained counsel. The Court finds that the information in the email which is being sought through the testimony of Mr. Wilens is relevant and not a privileged communication. Mr. Fagan asserts that the email is a crucial element of the Plaintiff's case as it shows that the Defendant and his counsel received that lease addendum, and from the Plaintiff's perspective of the case, this addendum addresses the assertion by the Defendant regarding the issue raised as to Civil Code 1946.2. Based on the Plaintiff's asserted theory of the case, the Court finds that the existence and contents of the email are crucial to the preparation of the case. The last element in the Court's analysis is whether there are other means to obtain the information other than to have opposing counsel testify. Mr. Fagan asserts that there were multiple discussions between counsel regarding trying to stipulate to the foundation for the email to be entered into evidence prior to the issuance of the subpoena but that the Defendant refused to stipulate to the foundation of the email. A process server cannot authenticate an email; the process server would only be able to testify about the delivery of the addendum in question. As there are only three people on the email, two of whom are the Defendant's attorneys, that would only leave subpoenaing the Plaintiff's former counsel, Mr. Silverstein, to testify to authenticate the email so that there is the foundation necessary to enter it into evidence. The Court would like to hear argument from counsel addressing the issue of Mr. Silverstein being a witness, as it raises some of the same fundamental issues, including whether there would be a waiver of attorney-client privilege by calling his former counsel to testify.
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